



POLICE DEPARTMENT

October 31, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303981 (Incident Date: May 7, 2023) regarding Police Officer Dennis Cobic, Tax No. 970458 (DADS No. 2024-31787), and Police Officer Annie Cosgrave, Tax No. 971384 (DADS No. 2024-31788)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202303981, pertaining to Police Officers Dennis Cobic and Annie Cosgrave. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officers would be detrimental to the Police Department's disciplinary process.

In this matter, Officers Cobic and Cosgrave were responding to a 911 call when they were informed by the caller that an individual was walking her dog and that that dog had bit the 911 caller previously. The officers approached the individual and her dog to obtain information to complete a Dangerous Animal/Bite Report. Although the officers believed this to be a mere request for information, their refusal to let the individual leave escalated the situation into an improper stop. Furthermore, the officers should have obtained language interpretation services once it became apparent that it was necessary. For these reasons, the Police Commissioner, having reviewed the facts and circumstances of this case, finds that Officers Cobic and Cosgrave improperly stopped and questioned the individual, failed to obtain language interpretation services, and failed to provide the individual with their business cards.

However, the Police Commissioner disagrees with the CCRB, and finds that Officers Cobic and Cosgrave's failure to provide language interpretation services does not amount to bias-based policing. There is no evidence of discriminatory intent nor a discriminatory law enforcement action by the officers against the individual based on her national origin. Additionally, the Police Commissioner finds that Officer Cosgrave's question to the individual, whether she needed to go to the hospital, is not a threat to remove the individual to the hospital. Rather, given the individual's age, agitated mood, and inability to remember her address, this was an expression of concern from

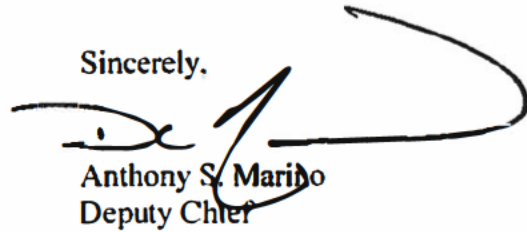
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Officer Cosgrave for the well-being of the individual.

Neither officers have formal disciplinary histories or prior substantiated CCRB cases. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice intends to retain jurisdiction over this matter. The Police Commissioner intends to take no disciplinary action against Officers Cobic and Cosgrave for the allegations of bias-based policing and the allegation that Officer Cosgrave threatened to remove the individual to the hospital. However, the Police Commissioner intends to issue Schedule "A" Command Disciplines, with the forfeiture of three (3) vacation days each, to Officers Cobic and Cosgrave for the allegations that they improperly stopped and questioned the individual, failed to offer the individual their business cards, and failed to obtain language interpretation services.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino", is written over the typed name and title.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



November 5, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202303981
Police Officer Dennis Cobic, Tax No. 970458,
Police Officer Annie Cosgrave, Tax No. 971384

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 31, 2024 (hereinafter referred to as the “letter”) informing the Civilian Complaint Review Board (CCRB) of the your intent to impose no disciplinary action against Police Officer Cobic and Police Officer Cosgrave for the substantiated allegations that the officers engaged in biased policing on the basis of national origin, specifically asserting that “Officers Cobic and Cosgrave’s failure to provide language interpretation services does not amount to bias-based policing.” In addition, you found that Officer Cosgrave’s question to § 87(2)(b) the complainant in this matter, whether she needed to go to the hospital was not a threat to remove her to the hospital, and therefore take no disciplinary action against Officer Cosgrave. CCRB disagrees with your determinations.

The letter’s assertion is contrary to both Department policy and City and federal law. As set forth on pages 6-7 of the CCRB’s Investigation Recommendation Report in this case:

- i. Paragraph 6 of Administrative Guide Procedure 304-17: Departmental Policy Prohibiting Racial Profiling and Bias-Based Policing states that “the Department complies with Federal civil rights laws and is committed to providing its programs and services without discrimination in accordance with *Title VI of the Civil Rights Act of 1964*, which prohibits discrimination based on race, color, and national origin (including language)” (emphasis added).
- ii. The United States Department of Justice, which enforces compliance with Title VI and its regulations by state and local law enforcement agencies that receive federal funding—the NYPD being such an agency—has clarified in its *Guidance Regarding Title VI Prohibition Against National Origin Discrimination Affecting Limited English Proficient Persons* (“DOJ LEP Guidance”) that Title VI and its implementing regulations require

those law enforcement agencies to take “reasonable steps” to ensure that limited English proficient (LEP) persons have “meaningful access to” and can “effectively participate in or benefit from” the agencies’ programs and activities, including street stops and field investigations, police responses to requests for assistance, and custodial interrogations, and that failure to take such reasonable steps during these kinds of police-civilian interactions violates Title VI’s prohibition against national origin discrimination. See *DOJ LEP Guidance*, 67 FR 41455, 41457, 41459, Appendix A (June 18, 2002).

- iii. Federal courts in New York State and around the country have also repeatedly held that law enforcement and other government officials’ failures to provide language assistance to LEP persons attempting to access governmental services constitutes national origin discrimination under Title VI. See, e.g., *New York v. Utica City School Dist.*, 177 F.Supp.3d 739, 752 (N.D.N.Y. 2016); *U.S. v. Maricopa Cty*, 915 F.Supp.2d, 1073, 1079-81 (D.Ariz. 2012); *Jones v. Gusman*, 296 F.R.D. 416, 454 (E.D. La. 2013); *Methelus v. School Bd.*, 243 F.Supp.3d 1266, 1277-78 (M.D. Fla. 2017).
- iv. The New York City Human Rights Law (NYCHRL) prohibits an employee of a “provider of public accommodation” from “withhold[ing] from or deny[ing] to [a] person the full and equal enjoyment, on equal terms and conditions, of any of the . . . services” of that provider because of the person’s actual or perceived national origin. See N.Y.C. Admin. Code § 8-107(4)(1)(a). As a provider of services to the public, the NYPD is a “provider of public accommodation” under the NYCHRL, see N.Y.C. Admin. Code § 8-102, and NYPD officers, as NYPD employees, are subject to NYCHRL’s anti-discrimination provisions when they are engaging in law enforcement activities. See also *Harris v. City of New York*, 2018 U.S. Dist. LEXIS 71290, *17-18 (E.D.NY. 2018).
- v. The New York State Appellate Division for the First Department has held that the failure to provide adequate language interpretation services to LEP persons attempting to access the services of a New York City government agency constitutes national origin discrimination under the NYCHRL. See *Boureima v. N.Y.C. Human Res. Admin.*, 128 A.D.3d 532 (1st Dep’t 2015)

CCRB also notes that the New York City Commission on Human Rights (CCHR) – the City agency that enforces the NYCHRL– specifies in its *Legal Enforcement Guidance on Discrimination on the Basis of Immigration Status and National Origin* (“*CCHR Enforcement Guidance*”) that “failure to seek to provide language interpretation services may be discrimination based on actual or perceived national origin where it amounts to a denial of meaningful access to direct public services or emergency services.” *CCHR Enforcement Guidance* § III.3.a, available at https://www.nyc.gov/site/cchr/law/immigration-status-and-national-origin-legal-enforcement-guidance.page#_ftnref108.

In addition, the NYPD’s August 2022 Language Access Plan explicitly recognizes that Title VI’s prohibition on national origin discrimination requires NYPD officers to provide language interpretation services to LEP civilians when performing law enforcement functions. Section III of the Plan states that:

“Consistent with Title VI of the Civil Rights Act of 1964, . . . it is the policy of the New York City Police Department to take reasonable steps to provide LEP and hearing-impaired persons with timely and meaningful access to the services and benefits that the Department

provide to the degree practicable. When performing law-enforcement functions, members provide free language assistance to LEP individuals whom they encounter whenever necessary and whenever a LEP person requests language assistance services”¹

Thus, under governing federal and City law and NYPD policy, a failure to take reasonable steps to provide language interpretation services to an LEP civilian during a police-civilian encounter *is* national origin discrimination when that failure results in an LEP civilian being denied meaningful access to and/or prevented from effectively participating in or benefitting from police services. In this case, as set forth on page 4 of the Investigative Recommendation Report, PO Cobic’s and PO Cosgrave’s failure to provide the complainant, § 87(2)(b) with language interpretation services prevented her from effectively responding to several of the officers’ questions, which in turn prolonged their detention of her and prevented her from effectively participating in the officers’ investigation of another civilian’s allegation that he was bitten by § 87(2)(b) dog. Accordingly, PO Cobic’s and PO Cosgrave’s failure to provide language interpretation services to § 87(2)(b) amounted to national origin discrimination under Title VI of the Civil Rights Act of 1964 and the New York City Human Rights Law and therefore violated the NYPD’s prohibition on such national origin discrimination in the provision of police services set forth in NYPD Administrative Guide Procedure 304-17.

With regards to PO Cosgrave’s question to the complainant whether she needed to go to the hospital, PO Cosgrave testified to CCRB that because § 87(2)(b) did not know her address or how long she had lived there, she was therefore disoriented to the point of medical concern. However, PO Cosgrave’s concern that § 87(2)(b) did not know where she lived – and was therefore “disoriented” – is disingenuous for two reasons. First, § 87(2)(b) pointed to the building behind her multiple times when asked for her address, indicating she did know where she lived. Second, PO Cosgrave stated that § 87(2)(b) was “playing games,” indicating PO Cosgrave’s belief that § 87(2)(b) was being intentionally evasive, not that she was disoriented. However, it is undisputed that both officers failed to provide § 87(2)(b) with the appropriate resources for her to effectively communicate with them. As such, § 87(2)(b) was being intentionally evasive in her interaction with the officers. Though § 87(2)(b) had trouble communicating with the officers due to the language barrier and becomes visibly frustrated as they repeatedly denied her assistance, she never displayed any behavior suggesting she is a danger to herself or in need of medical assistance that would justify removal to a hospital.

¹NYPD Language Access Plan (Revised August 2022) at 2-3,
https://www.nyc.gov/assets/nypd/downloads/pdf/public_information/nypd-language-access-plan-2022-August.pdf.

Based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Police Officer Cobic and Police Officer Cosgrave.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

November 6, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

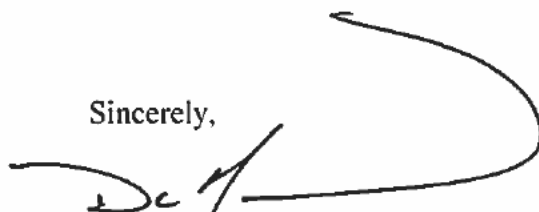
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Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 5, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officers Dennis Cobic and Annie Cosgrave, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of said Police Officers for the reasons expressed in my October 31, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be taken against Police Officers Cobic and Cosgrave for the allegations of bias-based policing and the allegation that Police Officer Cosgrave threatened to remove the individual to the hospital. However, the Police Commissioner directs the issuance of Schedule "A" Command Disciplines, with the forfeiture of three (3) vacation days each, to Police Officers Cobic and Cosgrave for the allegations that they improperly stopped and questioned the individual, failed to offer the individual their business cards, and failed to obtain language interpretation services.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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